

Usman Khan v. Paschimanchal Vidyut Vitran Nigam Limited and Another

High Court of Judicature at Allahabad · Division Bench · 14 February 2023 · Writ - C No. 3305 of 2023 · **Writ dismissed as infructuous after notice withdrawn**

HEADNOTE

Writ challenging a provisional-assessment demand of Rs 1,88,756 dismissed as infructuous after the licensee withdrew the notice dated 27 June 2021 to give a fresh opportunity. The Court did not examine the assessment. It left the department free to proceed in accordance with law. Counsel stated that any application would be considered under clause 6.14 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Usman Khan filed a writ against Paschimanchal Vidyut Vitran Nigam Limited to quash a demand notice dated 27 June 2021 for Rs 1,88,756, issued by the Executive Engineer at Milak Panvadiya, and to restrain coercive recovery. He contended that the notice fastened liability only on a provisional assessment. Counsel for the licensee stated that the notice had already been withdrawn to give a fresh opportunity, and that any application the petitioner moved would be considered under clause 6.14 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

withdrawal of provisional-assessment demand; writ infructuous

HOLDING

The writ was dismissed as infructuous once the licensee stated that the demand notice dated 27 June 2021 had already been withdrawn to give the petitioner a fresh opportunity. Counsel added that any application the petitioner moved would be dealt with strictly under clause 6.14 of the U.P. Electricity Supply Code, 2005. The Court did not construe that clause or the provisional assessment, and left the department free to proceed in accordance with law. ¶ 1-3

PRINCIPLE TAGS

demand-withdrawn-writ-infructuous The challenge to the notice of 27 June 2021 ended when that notice was withdrawn before hearing. Dismissal as infructuous left the provisional assessment and clause 6.14 undecided. ¶ 1-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LEGALITY OF THE PROVISIONAL ASSESSMENT AND OF THE DEMAND OF RS 1,88,756 UNDER THE NOTICE DATED 27 JUNE 2021.

The notice was withdrawn and the writ was dismissed as infructuous without a merits decision. ¶ 1-3

NOT DECIDED — SCOPE OF CLAUSE 6.14 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005, AND THE RELIEF DUE IF THE PETITIONER MOVES AN APPLICATION.

Clause 6.14 appears only in the licensee's statement. The Court did not construe it. ¶ 1-3